

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JESSICA EASTWOOD,

Petitioner

VS.

KARIM VEDOL,

Respondent

) Case Number: FDI-24-800093

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHILD SUPPORT, SPOUSAL SUPPORT, AND ATTORNEYS FEES
AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jessica Eastwood (Mother) and Respondent Karim Vedol (Father) married on
5/31/2016 and separated on 7/6/2024, for a marriage of 8 years and 1 month. The parties have one
minor child, Levi (DOB: 2/28/2017, age 9). Mother is represented by attorney Don Emley. Father
is represented by attorney Stuart Fishman.
- 2) On for hearing is Mother's Request for Order filed 3/23/2026 wherein Mother seeks guideline
child support, temporary guideline spousal support, and \$35,000 in need-based attorney's fees
and costs (\$22,000 in fees incurred to date and \$13,000 in fees to be incurred through the
conclusion of the case). Mother states she would be able to find work as a teacher or school
counselor if it were not for her epilepsy which prevents her from working this field due to stress
and memory issues. Mother states she has had two brain operations in the last year and her
recovery period is expected to take up to a year and a half, at which time she hopes to return to
full-time work as a teacher or school counselor if her medical condition has improved. Mother

1 states Father has been paying her \$1,000 per month in voluntary support since January 2025, an
2 amount unilaterally set by Father. Mother states Father earns more than \$300,000 per year and
3 has significant assets.

4 3) On 3/23/2026, Mother's attorney Don Emley filed a declaration stating that Mother has incurred
5 \$22,275 in fees to date for Mr. Emley to work on the case including multiple rounds of settlement
6 negotiations. Mr. Emley believes Mother will incur a total of \$35,000 in this case through final
7 settlement.

8 4) On 5/8/2026, Father filed a Responsive Declaration stating that he consents to a guideline child
9 support order and states he has already been paying Mother \$2,165 per month in child support
10 since November 2025. Father also states that he is willing to pay to Mother \$4,133 per month in
11 guideline spousal support on a temporary basis; however, Father would also like the Court to
12 order Mother to seek work and to issue a Gavron warning against her. Father states that if Mother
13 can maintain 50% custody of Levi, she is capable of working more than she currently is. Father
14 also states that he acknowledges Mother is entitled to some need-based attorney's fees, Mother
15 never responded to his November 2025 settlement letter and refuses to take any positions outside
16 of the ones she is taking in her Request for Order. Father requests \$6,200 in Family Code section
17 271 attorney's fees sanctions for Mother's attorney's failure to engage in good faith settlement
18 discussions.

19 5) On 5/12/2026, Mother filed a Reply Declaration. Mother states that Father only increased
20 voluntary support from \$1,000 to \$2,165 per month in April 2026, after she filed her Request for
21 Order (but before it was served). Mother attached a letter from her neurologist which confirms
22 she has a form of epilepsy that does not respond well to anti-seizure medication. Mother states
23 she has been recommended to remain from stressful work environments. Mother states "substitute
24 teaching has worked fairly well for me, but the pay is low and the availability of work is
25 inconsistent." Mother states that if Father "doubts the limits imposed by my medical condition, I
26 welcome an Independent Medical Examination (IME) and/or a vocational assessment that
27 incorporates the findings of an IME." Mother also states, "When my attorney first tried to discuss
28 the issue with his counterpart, my fees and costs totaled \$9,973.70, and I was asking for a
29 contribution from Karim of \$15,000 to finish the entire case, including that \$9,973.70. Now my

1 fees total more than \$30,000. Karim says he was ready to negotiate, but he didn't do that, and
2 rather than make a proposal to settle even this RFO, he has asked the Court to deny my request
3 for fees in its entirety and order me to pay his fees as a sanction under Family Code §271. That
4 does not signal good faith negotiations ahead. Unfortunately, I believe my estimate of \$35,000 in
5 fees and costs is likely to be insufficient to complete the case.”

6 6) On 5/12/2026, Mother’s attorney Don Emley filed a reply declaration. Mother’s attorney states
7 that he had to piece together Father’s earnings from prior years because Father failed to lodge the
8 documents required under Local Rule 11.7(A)(2)(e). Mr. Emley also states, “Counsel knew that
9 Karim's previous attorney ignored my requests regarding fees for ten months, and that in October
10 of 2025, I'd written to demand an answer to the question, noting that Jessica's fees had nearly
11 doubled since I'd first raised the issue. Yet when the comprehensive proposal referred to above
12 was sent, Karim proposed that ‘each party be responsible for their own fees and costs.’”

13 7) On 5/12/2026, Mother filed a Statement of Support Calculations.

14 8) On 5/14/2026, Father filed a Reply to Wife’s May 13, 2026 Reply Declaration. Father states that
15 five days before their upcoming hearing, Mother disclosed for the first time that her father has
16 “graciously suspended enforcement” of her rental obligations. Father asks to impute Mother with
17 the rental value of her current residence as untaxed income.

18 9) On 5/15/2026, Mother filed an Objection to Father’s Reply to Mother’s Reply and Motion to
19 Strike. Mother seeks to strike Father’s unauthorized sur-reply.

20 10) On 5/15/2026, Mother’s attorney Don Emley filed a Declaration for attorney’s fees and costs
21 seeking \$650 in Family Code section 271 attorney’s fees sanctions for fees and costs incurred
22 related to Father’s reply to Mother’s reply.

23 **B. Findings and Order**

24 1) Mother’s request that the Court strike Father’s reply to Mother’s reply is denied. The Court finds
25 that Father raised new and potentially relevant information regarding Mother’s living situation
26 that was not available to him by the deadline to file his Responsive Declaration. Mother’s request
27 for Family Code section 271 sanctions related to this issue is denied.

28 2) The hearing on Mother’s 3/23/2026 Request for Order is hereby continued to **Thursday,**
29 **6/4/2026 at 9:00 AM in Dept. 404** as the Court needs additional information from the parties.

- 1 3) At least 10 calendar days prior to the next hearing date, Mother shall file and serve a declaration
2 (not to exceed 5 pages in length, not including exhibits) which explains: (a) how many substitute
3 teaching hours she believes she is physically able to perform each month; (b) the number of hours
4 that are available for her to work in substitute teaching each month (regardless of her ability to
5 work those hours); (c) what is her current living situation and whether she has paid, is paying, and
6 will pay rent (and in what amounts); and (d) whether Levi is in after-school care and who pays for
7 that.
- 8 4) At least 5 calendar days prior to the next hearing date, Father shall file and serve a declaration
9 (not to exceed 5 pages in length, not including exhibits) providing any response he has to
10 Mother's new declaration. Father shall also include a summary of all voluntary support payments
11 per month he has made to Mother since 3/1/2026.
- 12 5) The Court will not consider any additional briefing, other than the briefing outlined above, in
13 advance of the next hearing date.
- 14 6) Mother's attorney shall prepare the Findings and Order After Hearing.
- 15 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
16 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
17 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
18 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
19 proposed order after hearing directly to the court. Failure to submit the order after hearing within
20 10 days may allow the other party to prepare a proposed order and submit it to the court in
21 accordance with CA Rules of Court, Rule 5.125(d).
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